STATE AND SOCIETY IN KENYA: THE DISINTEGRATION OF THE NATIONALIST COALITIONS AND THE RISE OF PRESIDENTIAL AUTHORITARIANISM 1963–78

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WHY SHOULD political leaders play such dominant roles in the political processes in Africa to the extent that their disappearance from the public scene creates such tremendous problems to society as a whole? Is it because African societies lack effective and hegemonic ruling classes or is it because the whole matrix of social conflict just lends itself to the domination by strong men?

We cannot answer these questions without going into the sociology of political leadership in Africa, the history behind the coming into power of such individuals and the interests of social forces which seek to benefit by their being in or out of power. Also we cannot ignore the fact that the extent to which an individual plays a dominant role once he acquires a presidential position is also a function of his own personal qualities. It is like the old question about the reasons for King Richard the Second losing power in Shakespeare's *Richard the Second*: was it because, as King, he could not manage the political crises with which he was faced due to his lack of wisdom in dealing with them or because earlier events and a changing environment made it difficult for the institution of kingship to manage such crises? Or was it because Richard failed to realize, due either to his own personal weakness or the advice he received, that the location of power had shifted and he needed to reconcile with Bolingbroke much earlier? Did Bolingbroke succeed because he was more astute in mastering the political crisis and putting together a winning coalition? Is *Richard the Second* a play about how power is won by expertise and lost by stupidity or is it a play about how the changing fortunes of individual leaders are shaped more by the changing balance of social forces than by their own individual capacities?

In trying to answer these questions, we realize we are not simply dealing with the ambition and skills of individuals, but also the environment in which certain personal qualities triumph as expertise or lose as stupidity.

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He is grateful to the Rockfeller Foundation for the research grant for 'Reflections on Development'. This is the part of his ongoing research on the relationship between state and society in Kenya. He also wishes to thank Professor Mahmood Mamdani for his comments on an earlier version during their *sejour* in Bellagio.

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In Richard the Second's time kingship was a central factor in feudal society which had a long history and whose existence depended on the relationships among various social forces in society. We should also note that feudal society was already in a state of significant flux by this time; hence, certain assumptions that Richard might have had about his real power (as handed down by tradition) might already have been undermined by these shifting relationships which he might not have clearly understood.

We might therefore argue, quite justifiably, that leaders and great political actors are by and large personifications of the social forces they represent in society. Individuals, no doubt, have ambitions to be this or that in society. But they can only fulfill these ambitions if they recognise, use, cajole, or even manipulate these social forces as vehicles for the fulfillment of their ambitions in life. As individuals strive to satisfy their ambitions, so do social forces themselves also seek to further their interests through the careers of such individuals. This is the dialectic that must be clearly understood in trying to understand the problem of leadership and political succession in Africa. Strong presidents have not imposed themselves on society simply by individual cunning and expertise; social forces in society, and the conflicts among such forces, provide the context in which such presidents acquire and retain power and, in certain cases, even end up using this power against the very social forces that propelled them into the power.[1]

We might further argue that there have been two transfers of power in Africa since colonial times: one from the colonialists to the nationalists, and the second from the nationalists to authoritarian and even dictatorial presidents. One might argue that the latter is not really a transfer but a usurpation, but that would assume that the nationalists actually resisted the rise of such strong presidencies, which was not always the case. Almost in every African country, we notice that there was a tendency for the nationalist political parties to concede significant political power to the leader over the party, and subsequently over the state. Reasons given for this phenomenon have varied: on the one hand there are those who argue, like Ali Mazrui, that there was a tendency in African nationalism to worship freedom fighters as heroes.[2] Coupled with this is the 'monarchical tendency in African politics', where the leader wants to be treated as a chief or a monarch and the people also relish seeing power exercised in a monarchical way.[3] But that is

1. I have already developed some of these arguments in an earlier paper, 'Succession et Heritage Politique', *Politique Africaine*, No. 3, 1981.
2. See A. Mazrui, *On Heroes and Uhuru Worship* (London: Longman, 1967).
3. The phenomenon that Mazrui describes as 'monarchical tendency in African politics' is aptly illustrated by Philip Short in his biography of *Banda* (London: Routledge and Kegan Paul, 1974), 281;

> Within the 'Malawi tribe' the position Banda had come to hold was like that of the old *Maravi* kings, complete with divine right and absolute authority. So, at least, he saw himself, and so he wanted to be seen. At first, unlike a monarch, he was not Head of State for life. Nor, indeed, was this necessary, for Banda held the presidency of the Republic by being President of the Party, and he *was* President of the Party for life.

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to describe a phenomenon, not to explain it. On the other hand, there is the school of thought which contends that the rise of the strong presidents in post-colonial Africa is really the result of the fragmentation of the petty bourgeoisie, struggling among themselves for political power, and who, not being able to produce any dominant tendency among them, are finally compelled to settle for the mediation of one man, the leader, who eventually grows into a strong president.[4]

But the strong man can either be a dictator or an authoritarian president. Presidential authoritarianism is born when political power is so concentrated in the office of the president that no major decision is taken within the bureaucratic or political process without reference to this office, or when the legitimacy of bureaucratic decisions is derived from their claim to have the blessing or backing of the president.[5] The presidency becomes the biggest bureau in terms of administration and policy-making; all other organs of government gradually begin to bend to it and politicians stand in awe of the power of the president. The weaker the incumbent feels, the more likely it is that he will try to exercise presidential powers personally and not entrust them to his bureaucrats.

In the case of Kenya, it will be the contention of this article that it was largely the disintegration of the nationalist coalition that enabled a strong authoritarian presidency to emerge. To begin with, a section of the nationalist coalition favoured this rise, seeing in it an opportunity to have access to state apparatuses and thereby acquire avenues for capital accumulation and personal enrichment. In this manner, this section did develop as the core of the indigenous bourgeoisie, but, by neglecting political organization in preference for direct control of state apparatuses, they jeopardised their control of the presidency as well. Subsequently, they even lost it, and realized only too late how, in the process of creating a strong executive president, they had undermined other popular organizations in society which had been party to the coalition that brought this rising bourgeoisie to political power.

The events of the early 1960s in Kenya, and the internal struggles in which the nationalist coalition was engaged, led this coalition to believe that it could solve its many political problems by instituting a one-party state. Little attempt, therefore, was made by the dominant faction[6] within this coalition to keep the party alive; if anything, the party was only reinvigorated when its

4. See, for example, R. Jackson and C. G. Rosberg, *Personal Rule in Black Africa: prince, autocrat, prophet, tyrant* (Los Angeles: University of California Press, 1981).

5. See also Harry Goulbourne's concept of 'presidentialism' in Goulbourne, 'The State, Development and the Need for Participatory Democracy', in Anyang' Nyong'o (ed.) *Popular Struggles for Democracy in Africa* (London: Zed Books, 1987).

6. This faction, referred to by Oginga Odinga in *Not Yet Uhuru* (London: Heinemann, 1967) as having been led by Tom Mboya and Jomo Kenyatta, was dominant precisely because of its influence on politics within the coalition. Odinga argues that it used intimidatory tactics to gain political control; while this is true, it is also the case that other politicians would have voluntarily supported it so as to be where the President was.

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form was functionally needed to achieve certain conjunctural objectives in the interest of the dominant faction. Not sure of dominating the political process outside the state apparatus where it could use law and coercion to its advantage, this dominant faction had a double relationship to the party; one of keeping it alive and using it *legally* when it suited its objectives; the other of letting it atrophy to deny any other organized faction of the bourgeoisie from using it politically to attain its objectives within the bounds of law. But by this process of political demobilization, the ruling bourgeoisie found it was rapidly losing the art of organization, and any other organized social force in society seemed a threat to its rule. It therefore adopted two strategies: one was to coopt autonomous popular organizations to its patronage and leadership; the other was to ban them altogether from the public sphere. Either way, the ruling and dominant faction found the executive power of the state most convenient and most useful. By using it directly or hiding behind that office while it threw its darts at such organizations, this bourgeoisie progressively found it could not act but by invoking the name of the president. In as much as it succeeded in its objectives, it also lost its own political muscle to the executive branch of the state, making it more and more difficult for it to have any hegemony in the political process. The final result was that the real political power of the bourgeoisie became directly associated, by both imagery and actual deeds, with the presidency. And as the incumbent in that office acted every day to arbitrate directly among feuding factions of the bourgeoisie, and as these factions appealed to him directly to mediate between them and the masses, the presidency rapidly gained autonomy of almost all bourgeois factions within the Kenyan society, benefiting, no doubt, by the growing inability of the bourgeoisie to organize themselve politically outside the state apparatus.

Factions of the bourgeoisie, especially the dominant and ruling faction, could not see their political and economic fortunes outside the halo of presidential power. The lynchpin of politics to them became the 'succession issue'; bourgeois politics therefore became the 'politics of succession', and it was no wonder that their attempts at reviving mass politics was around this very issue. *Having abdicated from political organization by dismantling their nationalist coalition, they could only ensure their class rule by perpetuating the authoritarian presidency.* This article argues that this authoritarian presidency, though viewed initially as a stabilizing factor for bourgeois rule, increasingly became a snare to this rule, and finally stood as a wall between the bourgeoisie and the popular masses, almost foredooming any hopes of the former taking the initiative of organizing the latter on their own political terrain.

The political implications of this state of affairs are far-reaching, one of them obviously being the *brittleness* of the political process, and the almost perpetual possibility that intrabourgeois struggles may be settled by

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appealing to the politics of command, i.e. a *coup d'etat*. Thus, whereas the authoritarian presidency may be said to have ensured reasonably stable periods of accumulation evidenced by high growth rates almost throughout the 1960s and 1970s, this has not necessarily been accompanied by a *stable political process*. Intra-bourgeois conflicts have, as a result of the brittleness of the authoritarian presidential system, been settled very violently; and although such violence has not led to a complete rupture of the system, there is no guarantee that these conflicts may not lead to such a rupture in the future if the system does not change. Without trying to predict the future, this article will mainly seek to trace the historical evolution of this authoritarian presidency, analysing carefully the social context in which it has evolved, and hoping that the picture painted may help in arriving at comparative explanations of political processes in other African countries.

Competition, United Front, Disintegration: 1963–66

It has been popularly believed that the Kenyan African Democratic Union (KADU) and the Kenyan African National Union (KANU), the two major political parties that fought the *uhuru* elections in 1963, were ideologically different political parties.[7] Although they did, in actual fact, differ on certain policy issues regarding land and the structure of government, for example, they were not in any way polarized ideologically. If anything, within each party, there were diverse ideological tendencies which banded together mainly as a result of wanting to stay within a winning or a defensive coalition. The genesis of the formation of the two parties shows quite clearly that they were the outcome of intrabourgeois struggles for gaining political power through coalition building.

KANU was the first to be formed in early 1960 at a conference held in Limuru, a few miles outside Nairobi. The first list of office bearers revealed an attempt to include representatives of all regions and social forces within the African nationalist movement. But the politicians who gathered in Limuru went there as petty bourgeois organizers of their own followers, be they unions, ethnic groups or urban welfare associations. They could only become part of the new party if they felt there was something in it for them. At that point in time, KANU seems to have placed a premium on putting together a winning coalition., and there is no record anywhere which shows that the Limuru meeting was called to discuss the kinds of *policies* which would bind these people together in a party; what they were party to were not *policies* but a *strategy* to win independence. As Tom Mboya later put it in his autobiography, they tried as much as possible to simplify things

7. Colin Leys, in *Underdevelopment in Kenya* (London, Heinemann, 1974), lays undue emphasis on the ideological difference between KADU and KANU. He characterises KANU as radical and KADU as conservative. It is much more likely that there were elements of radicalism and conservatism on both sides.

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and limit ideological debates so as to maximize the unity needed for winning independence.[8]

It is no wonder therefore that KADU was formed as a reaction to the formation of KANU by men who felt that they were being manipulated out of power by those who held important positions within KANU. KADU, like KANU, was formed for purely strategic reasons; policies and ideological postures followed later. Many in KADU's leadership felt that the Secretary General of KANU, Tom Mboya, was too much of a manipulator; they could not trust their political futures in his hands.[9] Moreover, since they came largely from the less advanced parts of Kenya, the fear of domination by representatives of the larger ethnic groups suddenly seemed a possible reality in the post-independence era. But the argument that KADU was formed simply and purely by the 'minor tribes' coming from the 'backward parts of Kenya' does not really hold water; it cannot explain why Masinde Muliro, representing the Abaluhyia people, chose to join KADU. The Abaluhyia were neither a 'backward group' nor could they count themselves minor. Ronald Ngala, coming from among the Mijkenda at the Coast, grew up in an area first to be penetrated by the missionaries; by the Kenyan development 'standards' of early 1960s, the Rabai area where Ngala's home was to be found was obviously pretty well integrated into the rest of Kenya. KADU, in reality, was a defensive coalition of regional party bosses who felt threatened by KANU and had to take a defensive posture as a bargaining point in sharing political power after independence. In that process of creating a defensive mechanism, the KADU politicians soon found allies among the white settlers who proceeded to provide the party with funds, ideology and policies. This alliance was easy to cement given the fact that both European settlers and some KADU leaders feared Kikuyu acquisition of land in the Rift Valley under a KANU government after independence.

Land had always been a thorny issue in Kenyan politics; the land issue was behind the Devonshire White Paper of 1923; the Carter Land Commission elaborated on it in the thirties; Mau Mau broke out on the issue of land; and many of those who were now in the forefront of the nationalist movement represented constituencies in which land questions dominated the political agenda. As the two political parties started to mobilize the masses looking for votes to gain a majority and form a government, they had to define their policy on land. In both parties, the policy was vague except on the issue of land purchases and transfer and who was to oversee such action. KADU favoured first and foremost a quasi-federal system of government in which the central government would 'devolve' certain powers to the regions. One such power was related to land transactions; regional authorities were to

8. Tom Mboya, *Freedom and After* (New York: Andre Deutsch, 1963).
9. This view was strongly held by Masinde Muliro, one of the leading founders of KADU. See also David Goldsworthy, *Tom Mboya: the man Kenya wanted to forget* (Nairobi: Heinemann, 1982).

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retain powers to authorize such transactions within their borders. At the same time, a Central Land Board was created in which national land policy would be co-ordinated. In this Board, representation was by region, again giving primacy to regional influence and control of land issues. KANU, however, opposed this arrangement, and wanted land to be released to market forces within the nation as a whole. There was, of course, a populist streak in KANU land policy which promised to ensure that the landless were given land 'in an orderly fashion'. The independence settlement, to which all parties were agreed, stipulated that landlessness would be solved through the settlement scheme approach. This approach ensured that the independent state would receive foreign loans with which to buy unproductive white farms; these farms would then be parceled out to smallholders who would then pay back the loan over a long period of time.[10]

But on both sides there were those who represented very poor constituencies, very land hungry constituencies, who felt that neither the KADU approach nor the settlement scheme approach would satisfy their supporters. There were also those who, for ideological reasons, believed that a land policy based on the regulation by market forces was unjust to the poor and landless and that government had to take a much more radical posture after independence in acquiring land and distributing it free to the landless. But such divisions did not emerge until after independence when the question of what to do with power already acquired was posed as a practical question to the nationalists.

Thus it may be argued that, before the General Elections of 1963, both KANU and KADU tailored their policies mainly to maximize support from the electorate. More than that, the articulation of clear policy lines was secondary to the near-demagogic appeal to the masses to support the coalition that could either govern them best or best defend their interests after independence. Personalities became an important factor; heroism in fighting the colonialists was usually an added advantage. In this regard KANU, identifying itself with the most heroic struggles against the colonialists, won the hearts of the most urbanized and proletarianized sections of the Kenyan society. It so happened that these sections also historically coincided with the two dominant ethnic groups in Kenya: the Kikuyu and Luo. But it was also a fact that KANU did better in urban areas than did KADU. But the real political machines that mobilized the

10. For more discussions on land ownership and social transformation in Kenya, see the *Review of African Political Economy*, No. 20 (1981), special issue on 'Kenya: the agrarian question.' See also C. Leo, *Land and Class in Kenya* (Toronto and London: University of Toronto Press, 1984); M. P. Cowen, 'Commodity Production in Kenya's Central Province', in J. Heyer *et al* (eds), *Rural Development in Tropical Africa* (London: Macmillan, 1981); J. W. Harbeson, *Nation Building in Kenya: The Role of Land Reform* (Evanston: Northwestern University Press, 1973); M. P. K. Sorrenson, *Land Reform in Kikuyu Country* (Nairobi: Oxford University Press, 1968) and *Origins of European Settlement in Kenya* (Nairobi: Oxford University Press, 1968).

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votes for the KANU coalition was not KANU, *the party*, but the organizations within KANU, *the coalition*. The same could also be said of KADU. Thus Kenya became independent, not with a dominant ruling party at the top, but with a winning coalition of nationalist organizations forming a government. Kenya became independent, not with a ruling party that was a victor because its policies won it popular support, but with a party that had established superior organizational capability and put together a winning coalition.[11] KANU won the competition to form the independence government; after independence, it was now faced with the difficult task of transforming a strategic coalition into a ruling party, a challenge that was to force onto the agenda the problem of what the members of the coalition were really 'party to'.

It was at this point that it became very clear to KANU that it was not really a party but that factions within it remained factions, each struggling to dominate the others through influence and organization. Resources to achieve successful influence and organisation became important; to acquire such resources, including popular following, ideology was also invoked. It is in this process that there started to coalesce, within KANU, two competing tendencies which were labelled as progressive and conservative, nationalist and anti-nationalist at a later period in time. But, to begin with, in struggling for dominance within the party, the two tendencies decided to court KADU (and the more minor African People's Party led by Paul Ngei) back to KANU, each tendency pinning its faith on getting more supporters crossing over from KADU. Once KADU was dissolved, then the factional fights broke out in the open; one was identified with the leadership of Jaramogi Oginga Odinga, then Vice President; the other was identified with the leadership of Tom Mboya, then Secretary General of KANU and Minister for Economic Planning and Development. Odinga's faction was labelled as nationalist and progressive (even communist); Mboya's faction was identified as pro-west, conservative and even reactionary.

Oginga Odinga insists in his autobiography *Not yet Uhuru* that these divisions were indeed ideological. He even goes further to argue that these ideological and policy rifts became more and more pronounced after KANU and KADU had been joined to enhance national unity because there were those within KANU who saw this unity more as a camouflage for consolidating right-wing and anti-democratic forces. Colin Leys argues that the point of separation between KANU (A) and KANU (B) (one progressive and one conservative) was ideological: one right-wing, led by Mboya and Kenyatta, and the other left-wing led by Odinga and Bildad Kaggie.[12] Apart from the land issue over which they differed radically,

11. See, generally, Cherry Gertzel, *The Politics of Independent Kenya*, 1963–8, (Evanston: Northwestern University Press, 1970).
12. Leys, *Underdevelopment in Kenya*, pp. 205–53.

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they also differed on their attitudes towards the state, the working class movement, and foreign policy. Was the state to be used by the nationalists now in power to create a capitalist class and various classes of property among the Africans or was the state itself to be the capitalist, preventing the accumulation of capital in private hands but encouraging it in the public sphere? Leys suggest that the pro-west, conservative Mboya-led group was much more for a free-market society in which the state superintended laissez-faire capital accumulation while the progressive and nationalist Odinga-led group was much more cicumspect regarding the merits of capitalism in a developing country like Kenya.

But while these ideological differences existed in rhetoric, and while they found more concrete expression in the Trade Union movement where Mboya's leadership was first to be openly challenged, they served more as 'mobilizing agents' for the opposed factions rather than explanatory variables for any real ideological differences. There was, of course, a much more apparent fact which the American ambassador Attwood noted at the time.[13] This was the fact that there was a significant presence of the Cold War in these factional struggles. The United Stated of America feared the radical rhetoric of the Odinga group and the undeniable patronage it had received from the Eastern block countries; Attwood's partnership with the Mboya group grew by the day as he tried to undermine the progressives in government and within the party. The progressives, too, were suspicious of Mboya's closeness with the West and interpreted it as a sell-out to western imperialism so soon after independence; whether this was true or not, it served to whip up nationalistic sentiments against Mboya in the Trade Union movement. Goldsworthy insists that Mboya was never at any time apologetic about his western connections and friendships; if anything; he was proud of them. But he was, at the same time, not a tool of the west either; he used his connections to further his political ambitions and the aims of the nationalist movement. He had a clear ideological line, that of a social democrat, and he believed in capitalist development in Kenya in which the state would play a leading role in accumulation, manned by competent civil servants. He could not, however, stand 'socialist adventurists' who did not know what they were talking about; men who wanted to build socialism by redistributing the poverty of the country.

It must also be realized that, in the mid-1960s there was a more-or-less blanket popular sentiment in independent Africa that the independent regimes had to define themselves to the populace regarding what kind of society they were going to build. By the very nature of the nationalist movements, this was to be expected. Nationalism had moved the masses to independence: beyond that, people were not clear what was to happen. A call for some blue print, some guideline regarding what was to be done was

13. W. Attwood, *The Reds and the Blacks*, (London, Hutchinson, 1967), p. 247.

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necessary. Nkrumah had already given the lead by speaking of socialism; so had Julius Nyerere. Kenya could not escape the ideological pressure to define itself vis-à-vis socialism. Socialist rhetoric was already present in the language of the nationalists themselves, and now each faction wanted to use it as a mobilizing tool, as something which put it much closer to the impulses of the masses.

In early 1965, Mboya took the initiative and introduced in Parliament a document which was to serve as KANU's policy on socialism; this was Sessional Paper No. 10 on *African Socialism and Its Application to Planning in Kenya*.[14] The document had very little to do with socialism as such. Its objective was to score a political point; it aimed to take the initiative away from the radical group and make the discussion of socialism coterminous with discussing on-going government policy within the framework and goals set by the government and not within the framework and goals of some ideal aspirations. Once Parliament had passed the Sessional Paper as *the* Kenyan policy on socialism, criticism of it would easily be dismissed as indulging in 'foreign ideology'.

The political battles that Mboya was winning against the radicals pleased Ambassador Attwood but they worried the men around Kenyatta, especially Mbiyu Koinange, Charles Njonjo and Njoroge Mungai. There is no doubt that, at this time, there were many more currents in the political arena rather than just the apparent duality of the ideological rivalries. Attwood reports a scene where he had gone to see Kenyatta and they both talked about Odinga and Mboya. While they both relished the fact that the radicals were rapidly losing ground, and Odinga could eventually be forced to resign his post as Vice President, Kenyatta expressed his concern over American financial support of Mboya. 'I want you to see to it that the flow of these funds is stopped', Attwood reports Kenyatta to have told him.[15] Obviously the old man was worried about the organizational acumen of young Mboya, and, knowing that he had depended on both Mboya and Odinga to get where he was, he would be still a prisoner of one when the other was vanquished.

But Mboya could not prevent his opponent establishing an institutionalised organization, the Kenyan People's Union, to challenge KANU. The *Wananchi Declaration*, the programme of the KPU published in 1966, explained the birth of the party as having come about as a result of policy differences within KANU. These were itemized as follows: a grip of foreigners on the economy which KANU continued to tolerate but 'the true nationalists' opposed; social stratification which was emerging, with some of the KANU leaders beginning to enjoy pomp, splendour and wealth formerly reserved for the colonial masters and not caring to improve the lot of the

14. *African Socialism and its Application to Planning in Kenya* (Sessional Paper No. 10, Nairobi, Government Printer, 1966).
15. Attwood, *The Reds and the Blacks*, p. 241.

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man in the street and on the shamba; the land issue which KANU systematically explained in terms of market mechanisms and rational development while problems of equity regarding ownership were neglected; and party democracy which was ignored in preference for settling factional competition and ideological differences through intrigues and 'stage managed elections'.

Although the KPU tried to explain its ideological differences with KANU in terms of socialism, this was not where the big divide lay. KPU was obviously a much more populist party, and a party which was forced, by the very fact that it had gone into opposition against KANU, to define policies more systematically and to appeal to the popular masses more directly than KANU. KANU, in government, was saddled with the responsibility of governing, of justifying the social differences that were emerging in society. KPU, in opposition, could exploit the social contradictions to its advantage, and in this the masses were its laboratory. The politics of mobilization and populist rhetoric favoured the KPU's existence and encouraged it to be more explicit in its policies; KANU, by contrast, found mobilizational politics a menace to its rule. Moreover, the ruling party remained unorganized from within, and this was no accident; the expulsion of the radical elements, or their being forced to resign and form an opposition party, did not eliminate the remaining factional rivalries within KANU, least of all that between the president's men and the Secretary General of the party.

Strengthening the presidency: the conservative mood, 1963–72

The Kenyan economy registered a very high rate of growth during the first decade of independence. Real average per capita incomes increased by about 36·8 per cent between 1964 and 1978. Most of this growth was accounted for by the agricultural sector in which large scale unproductive white-owned farms were broken into more productive small-holding farms and given to African peasants through settlement programmes organized as part of the independence package.[16] The best known of these was the Million Acre Settlement Scheme introduced in 1961 and completed in 1971. This and other minor settlement schemes settled over 34,000 families on 430,000 hectares.[17] The average size of settlement was considerably larger than the average small holding in the rest of Kenya, even on the high density settlement schemes. Thus, given the objective conditions, there was no reason why the opening of the frontier of private property in land to poor and landless peasants should not have cemented an alliance between the bourgeoisie and the peasantry. For, while peasant settlement was

16. R. Kaplinsky, 'Fractions of capital and accumulation in Kenya', (IDS Sussex, *mimeo*, 1982).
17. C. Leys, *Underdevelopment in Kenya*, p. 74.

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expanding, the concentration of land assets in the hands of the nationalist bourgeoisie was also going on. The KPU thought that this created an obvious contradiction between the bourgeoisie and the peasantry. What the party did not appreciate was that the land being acquired by both the bourgeoisie and the peasantry was that land originally alienated to the white settlers. The KPU therefore changed its tone; from advocating free land to the landless it started emphasizing a policy to put a ceiling on the size of land holdings. But this shift of emphasis was probably too late to save Bildad Kaggia. Geoff Lamb narrates how attempts by Kaggia to mobilize the peasants of Murang'a into the KPU on the issue of landlessness failed when Kenyatta suddenly distributed tiny pieces of the earth to the Murang'a peasants as Kaggia was unleashing his onslaught.[18] Apparently Kaggia had not been priviliged to learn from what Lenin had said of the Stolypin reforms, and continued fruitlessly on his populist crusade until his party was proscribed in 1969.

The success of the land reform programmes had obviously, at least in the early and mid-1960s, bred a conservative mood among the peasantry in one of the regions where the land issue was most sensitive, the Central Province. Framing the land question in terms of putting a ceiling on the size of land-holdings was not, therefore, meant to appeal to the peasantry but to the petty bourgeoisie, some of whom might have rightly felt that, if size was limitless, it would not be long before the good land was all taken by those who had political power.

But the early and mid-1960s was also a time when the petty bourgeoisie was in expansion. As the state became an active participant in capital accumulation through the setting up of various parastatal organizations, it also became the biggest employer and the provider of loans and credit facilities for the middle class to facilitate property ownership. Among those employed in state apparatuses, a new class was emerging, what Issa Shivji has referred to as the bureaucratic bourgeoisie[19] and what Mahmood Mamdani has recently referred to, in the case of Uganda, as a class of bureaucrat capital.[20] In essence, these are people who, occupying important positions in the state apparatus, can use their political power to garner revenues for private accumulation and personal enrichment. Thus, apart from performing their duties as servants of the state, they are constantly engaged in the act of 'straddling', running businesses and enterprises for purposes of accumulation in addition.[21]

18. G. Lamb, *Peasant Politics: conflict and development in Murang'a* (Sussex: Julian Friedman, 1974), pp. 27–53 and 96–109.
19. See Issa Shivji, *Class Struggles in Tanzania* (Dar es Salaam: Tanzania Publishing House, 1976).
20. M. Mamdani, 'Forms of Labour and Accumulation of Capital: analysis of a village in Lango, Uganda', *Mawazo*, 5, (No. 4, December 1984) pp. 44–65.
21. M. P. Cowen and K. Kinyanjui, *Some Problems of Capital and Class in Kenya*, (Discussion Paper, IDS, Nairobi, 1977).

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Tom Mboya seemed to have been singularly against straddling. Once a civil servant saw he could accumulate capital and wealth by dint of his office, Mboya argued, there was no telling where this could end. Moreover, this would be the beginning of corruption and inefficiency in the civil service, let alone an increase in clanism, favouritism and tribalism in granting jobs within the service.[22]

Even without legally sanctioning straddling, clanism, tribalism and nepotism were already becoming a problem by the mid-1960s. The Kikuyu, in particular, felt that they had been discriminated against during the emergency; now that independence had been won, they needed to be given extra advantage in getting public service jobs. Moreoever, with the establishment of new parastatals, there was a tendency for the president to staff top posts predominantly with people of Kikuyu origin. This led the bureaucratic bourgeoisie to owe direct loyalty to the president.[23] The critics of this practice, except for Mboya, also tended to condemn it as a presidential iniquity, rather than a phenomenon which was dysfunctional in the long run to political stability and capitalist development. The more Kenyatta came under attack because of the favours he was seen to be granting to his clansmen, the more the Agikuyu bourgeoisie as a whole, whipping up popular support within Kikuyuland, banded together in defence of his presidency. In this atmosphere, the ideological issues that the KPU was raising obviously became secondary in the daily political battles of many members of the bourgeoisie and petty bourgeoisie. Even among the working class, a mood of conservatism was prevalent.

The increase in foreign investments and the deliberate emphasis by the government on expanding the manufacturing sector led to the rise of the share of the GDP of this sector from 10·4 per cent in 1964 to 12·6 per cent in 1971. Between 1971 and 1977, the manufacturing sector did not at all increase its share of the GDP. The share of services rose from 39·9 per cent in 1964 to 44·7 per cent in 1971; this increase was given by large public investments in education soon after independence.[24] Given the primacy the popular masses put on education before independence, this was the kind of expenditure that generated a lot of support for government policy. With the establishment of new parastatals and the expansion of old ones, the state became the largest employer of labour. In 1963, public sector employment accounted for 30 per cent of all 'formally' employed persons; in 1971, this

22. These views were expressed by Tom Mboya at a panel discussion at the University of Nairobi in July, 1968. The other members of the panel were Dr J. J. Okumu, then Head of the Department of Government at the University, and Mr Ciira Cerere, then an undergraduate student in political science. The topic was 'African Socialism'.
23. See, for example, John Nellis, 'Is the Kenyan Bureaucracy Developmental?' (IDS, University of Nairobi, 1971).
24. See, for example, Anyang' Nyong'o, 'Possibilities and Historical Limitations of Import Substitution Industrialization in Kenya,' in P. Coughlin and G. Ikiara (eds), *Industrialization in Eastern Africa: groping for a strategy* (Nairobi, Heinemann, 1988).

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had risen to 40 per cent and this figure did not change much subsequently. By 1977 it still stood at 41·7 per cent, indicating quite clearly that 1963–71 was when the public sector employment expanded most, and quite understandably so.[25]

Under this atmosphere of expansion in employment opportunities, the executive branch took steps to gain control of working class organizations and the trade union movement without much resistance. The creation of the Central Organization of Trade Unions in 1966 as an umbrella organization of workers whose leaders were effectively presidential appointees was, at that time, seen mainly in terms of the Kenyatta-Odinga-Mboya struggles. There were two umbrella organizations of unions already: the Kenya Federation of Labour, grouping unions whose leaders were overwhelmingly Mboya supporters right from his days as the leader of the Nairobi Convention People's Party; and the Kenya Federation of Progressive Trade Unions, whose leaders were Odinga loyalists. By statutorily dissolving these two groupings and bringing them under COTU with Kenyatta's patronage at the top, it was Odinga and Mboya who were seen to have lost. The real losers, however, were the workers; for the creation of COTU did not only eliminate more pluralism in trade union organization, it also drastically reduced their autonomy vis-à-vis the executive branch of government, effectively strengthening the hands of the president in controlling union activities.[26]

At the time this presidential control did not alienate workers from the government, since the marriage between unions and the state actually produced beneficial results with regard to several union demands, most of all with regard to employment. There was, for example, the Tripartite Agreement of 1964 requiring all private sector employers to increase their labour force by 10 per cent and central and local government employers to increase their labour force by 15 per cent. This agreement created at least 40,000 new jobs, thereby taking care of the then unemployed labour force.[27] In return, the unions agreed to abide by a 12 month wage freeze and a total ban on strikes. After the formation of COTU, even without signing new Tripartite Agreements, the spirit of the 1964 Agreement was adhered to by the three parties, and an intricate formula was devised curtailing strikes as a weapon for making working class demands by giving immense latitude to the Minister for Labour to declare illegal those strikes which were taken without exhausting the machinery for negotiations. The government, therefore,

25. Kenya Government, *Economic Survey* (various issues, 1964–72).
26. It is unfortunate that the only authoritative account of the history of the Trade Union Movement in Kenya ends in 1952. The late Makhan Singh's *History of Kenya's Trade Union Movement to 1952* (Nairobi: East African Publishing House, 1969) needs to be complemented by a similar study of the period since then. See also M. Chege, 'The state and labour in Kenya,' in Anyang' Nyong'o (ed.) *Popular Struggles for Democracy in Africa* (London: Zed Books, 1987).
27. Chege, 'The state and labour in Kenya'.

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reserved the right to use the stick where and whenever the carrot was not available.

The assassination of Tom Mboya and the banning of the KPU

Goldsworthy has now come out with documented evidence, from interviews and other primary sources, that the assassination of Tom Mboya in July 1969 was the result of a conspiracy involving people who were very close to the president.[28] In spite of several constitutional manoeuvres undertaken between 1965 and 1968 to limit the possibilities of a Mboya accession to the presidency, he still remained a threat given his position as Secretary General of the ruling party KANU. This point needs careful explanation.

The independence constitution stipulated the position of the president and the procedures regarding succession in the event of disability, resignation or death. These stipulations went through some amendments between 1965 and 1968. The 1968 amendment is perhaps the most important for our analysis. It stipulated that a presidential candidate had to be at least 40 years of age, that, in the event of death, the Vice President would succeed the president for 90 days and exercise very limited powers. After those 90 days, there would be a general election at which the president would be elected.

Just before the formation of the KPU in 1966, under the initiative of Mboya, KANU organized an impromptu party conference at Limuru at which the party constitution was radically revised. The post of Deputy President of the party, then held by Jaramogi Oginga Odinga, was abolished and seven new Vice Presidents created, one for every province. This effectively diluted this post and made the Secretary General the single most powerful post after the president. Mboya remained the Secretary General of the Party and hence the man next to Kenyatta in party hierarchy. The move was meant to neutralize Odinga within the party, but, once he had left and formed the KPU, the move made Mboya the centre of envy of those party barons or factional bosses within KANU who thought they were also qualified to succeed Kenyatta. Moreoever, Mboya's politics and organizational capability was also a threat to them; having known how to summon the otherwise moribund party into action when he needed it, he would not hesitate to use it effectively in settling the succession issue in his favour should Kenyatta die. Things were made worse for Mboya by the attention the western press gave him as the man 'most likely to succeed Kenyatta'. It is quite clear that this 'grooming' by the western mass media served the interests of western economic interests in Kenya; Mboya was the single and most powerful man in government capable of explaining and rationalizing

28. Goldsworthy, *Tom Mboya*, pp. 279–85.

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Kenya's economic policies and the 'happy partnership' between imperialism and the rising bourgeoisie. But a faction of this rising bourgeoisie which was bent on straddling found Mboya's rather rigid attitude with regard to a professional civil service a menace to their interests.

The presidency and the crises of legitimacy: 1970–78

The ILO Report of 1972 on *Employment, Incomes and Equality: a strategy for increasing productive employment in Kenya*,[29] underscored the political dangers of the pattern of social transformation that had taken place in Kenya since independence. This 'growth without redistribution', the report argued in a populistic tone, could only alienate the underprivileged sectors of society from the state. In order to avoid such inequalities among the social classes breaking into irreconcilable conflicts, a belief system must be created that harmonises the different interests, that keeps them within the bounds of order and that represents the given social order as serving the interests of all social forces. This is the role that a dominant ideology plays in a class divided society. But in order to succeed, ideology must somehow approximate to reality; in order for an ideology to provide grounds for state legitimacy, state action must in turn somehow approximate ideological promises or ideals. Once there is a wide gap between the two, a regime loses not only the capacity to rule authoritatively but also its claims to legitimacy. Under such conditions, a tendency to rule through the heavy hand of repression sets in, making the affair of governing uncertain, unpredictable, unstable and even expensive.

Tom Mboya's assassination substantially eroded the legitimacy of the Kenyatta regime. The ideology of *harambee* was a laissez-faire ideology which called on the people, in spite of their social differences and positions in society, to pull together for purposes of nation-building. Kenyatta, in actual fact, openly acknowledged the inevitability of social stratification in building a capitalist society, and explained them in terms of individuals not being able to use the opportunities put before them to their best advantage.[30] In the 1960s, when the economy was expanding and the property frontier was widely open, *harambee* did not need to justify itself: individuals who rose from rugs to riches were plenty.

When Kenyatta had a heart attack in August 1968 and there were rumours that he had almost died, the factional struggles within KANU over the

29. ILO, *Employment, Incomes and Equality: a strategy for increasing productive employment in Kenya* (ILO), Geneva, 1972).

30. This was demonstrated very vividly by Kenyatta during the Little General Elections campaign in 1966 when, in addressing a public rally in Kandara where the KPU's Vice President, Bildad Kaggia, was defending his seat, Kenyatta accused him of having done 'nothing for himself'. This was unlike his other colleagues with whom he was detained like Kenyatta himself and Paul Ngei. They, unlke Kaggia, Kenyatta pointed out, now had property in land and other things. Kaggia, however, was waiting for 'free things', to be handed to him like manna, from heaven! See, for results, George Bennett.

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succession issue intensified. Soon after that, there was even an assassination attempt on Mboya. The man charged with having fired at Mboya did not say much at his trial except to plead drunkenness; Mboya, on his part, gave evidence which betrayed his desire not to let the public know too much; he was obviously buying time. Goldsworthy reports that, from then on, he was definitely worried about his life, and he seems to have been under very strict surveillance from somewhere.[31]

The mass reaction after Mboya's assassination was spontaneous: the Kenyatta Government stood accused of complicity. The Luo people suddenly felt a bond of unity among themselves in the tragedy; for them, their son had been killed to stop him getting what he rightly deserved, given his contribution to the nationalist movement. Elsewhere in the country, the sense of injustice was felt deep. Without any other weapon to marshall public support behind them, the Agikuyu bourgeoisie banded behind Kenyatta to summon tradition so as to create unity with their peasantry and face the outside world in a united front.[32] At the moment of crisis, the weaknesses within the bourgeoisie came out in the open; lacking an organised community of interest at the national level, natural bonds and ties were the only organisational structures they could resort to so as to solve their contradiction or defend themselves when these contradictions burst asunder into acute conflict. Obviously Kenyatta lost face nationally; there was no way he could pose as the national hero after the assassination and the subsequent oathing of the Agikuyu people to give him support for riding over the crisis.

But the events following the assassination also produced other unintended results: no longer was there any illusion that the nationalist coalition had any real unity within it; factionalism and sheer pragmatic compromise of the bourgeoisie in politics became the general norm. With the banning of the KPU in October 1969, party politics subsequently became almost non-existent, and the office of the president as the repository of real power was substantially enhanced. From 1970, however, Kenyatta could no longer effortlessly preside over a society since its social contradictions were no longer smothered by the actual possibilities of progress. Thus, apart from having to contend with the crisis of legitimacy in the aftermath of Mboya's assassination, the banning of the KPU and the detention of its leaders, an economic crisis also set in to further strain the relationship between the state and the popular masses.

1972–76 was a period when both the internal and the international enviroment proved extremely difficult for capitalist development in Kenya. Internationally, oil prices went up suddenly following OPEC actions in

31. Goldsworthy, *Tom Mboya*, p. 274.
32. P. Ochieng' and J. Karimi have given a brief account of this in *The Kenyatta Succession* (Nairobi, Transafrica, 1981).

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1973; the import bill increased accordingly, creating a sharp deterioration in the balance of payments position. The import substitution industries that had been established with heavy dependence on imported raw materials and technology soon found the changed circumstances unconducive to further expansion or production for export. Inflation went up, and real wages plunged considerably. If we can take an index of real wages as 100 in 1967, in 1971 it stood at 103 only to drop to 83 in 1974. While real wages were systematically going down, the rate of profit for both local and foreign firms was systematically rising. The rate of profit for local firms went up from 93 per cent of what it had been in 1967 to 95 per cent in 1971 and 97 per cent in 1974. The increase for foreign subsidiaries was even sharper: from 110 per cent in 1967, the rate plunged to 97 per cent in 1971 only to shoot up every year reaching 118 per cent in 1975.[33]

To further compromise the state, the Ndegwa Commission in 1972 legalised straddling once Mboya was out of the way.[34] Mboya had argued that the state should superintend capital accumulation but not be used as an avenue for private accumulation by those who occupied state institutions.[35] But this argument went contrary to those members of the ruling class and the emerging bureaucratic bourgeoisie precisely because, not having a capital base of its own, it could only create it through using state power as an avenue for primitive accumulation. Competition for occupying state positions became even more acute once Ndegwa legalized the involvement of civil servants in business. At the same time, this competition sharpened the contradictions among the competitors. It is this scenario that explains the rise of J. M. Kariuki in Kenyan politics.

Kariuki was a veteran Mau Mau detainee. He became Jomo Kenyatta's private secretary some time after coming out of detention and was subsequently elected to parliament for the Nyandarua North seat. In parliament, he served as an Assistant Minister between 1964 and 1969. Following the General Election of that year, Kariuki had hoped that Kenyatta would make him the Minister for Agriculture, where he was then Assistant Minister, replacing the then only white member of the cabinet, Bruce Mackenzie. But Kenyatta did not; instead, Kariuki was switched over to be an Assistant Minister for Wild Life and Tourism—an obvious demotion.

Kariuki was a prosperous businessman and farmer. He had built a substantial capital base and was perhaps one of the richest among the

33. Figures here are quoted from Kaplinsky, 'Repression and Development'.
34. Kenya Government, *Report of the Commission of Inquiry (Public Service Structure and Remuneration Commission)* (known as 'The Ndegwa Commission') (Nairobi: Government Printer, 1971).
35. See, for example, Tom Mboya, 'The Role of the Civil Service in Developing Countries', in *Challenge of Nationhood* (London: Heinemann, 1969).

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indigenous bourgeoisie. Coming from Nyeri, he was not close to Kenyatta in terms of ethnic ties, and seems to have interpreted his non-appointment to a full cabinet post as the machination of a group then referred to as 'the Gatundu Courtiers'.[36] Kariuki therefore decided to launch a full scale campaign against this group, making it quite clear that he had set his eyes on the presidency. He adopted a populist stance, appealing directly to the popular masses and directing the nation's attention to various aspects of growing social inequalities and inequities in the political process.

The fact that social inequalities were increasing in society was difficult to deny during the 1970s. Land ownership was becoming more and more concentrated. According to the ILO study, the largest 4 per cent of farms took up 47 per cent of all farm land; whereas the smallest 70 per cent of farms took up only 13·3 per cent of the total.[37] These aggregate figures become especially significant when they are disaggregated to reflect local-level social relationships, especially with regard to Central Province where Kenyatta expected to get his primary base of support. In 1976, in Murang'a, Nairobi and Kiambu Districts, three districts which accounted for 80 per cent of all large-scale coffee output, the smallest 70 per cent of farms covered 14·3 per cent of the total land area while the largest 10 per cent covered 70 per cent.[38] In other words, it is where the majority of the bourgeoisie came from and where bureaucrat capital was most concentrated that there was the largest and widest polarization in land ownership. It was also within this region that the ruling class expected all members of that particular ethnic group to be loyal to the regime on the basis of primordial ties rather than democratic principles, political party affiliation or mores of social justice. The people were expected to be content, not because of what they were concretely getting from the regime, but because the presidency 'was theirs'.

But nowhere was the fusing of landed property, industrial property and state power more prominent than in the Central and Rift Valley Provinces where the regime was urging the popular masses to be loyal to it since the presidency 'was theirs'. Kedong Ranch, which alone owned 46·3 per cent of all ranchland in Nakuru District, had 28 owners. Of these, 8 were Members of Parliament and Cabinet Ministers, 3 were executives of parastatals, 2 were local government employees, and 1 was a company executive. 50 per cent of all Africanized land in Kiambu was owned by 183 individuals, 44 of whom owned about 70 per cent of this land. These 44 comprised 5 MPs, 3 ambassadors, 4 senior civil servants, 4 other government officials, 7 executives of parastatals, 2 church officials and the remaining 19 were listed as

36. The 'inner cabinet' of the courtiers comprised Mbiyu Koinange, Charles Njonjo and Njoroge Mungai. As court politics always go, even within the inner cabinet there were factions—one man factions! The drama of this factionalism was to unfold as the succession struggle became more intense in the seventies. Gatundu, of course, was Kenyatta's home.
37. ILO.
38. A. Njonjo, 'The Kenya Peasantry: a re-assessment.,' *Review of African Political Economy*, No. 20 (January–April, 1981), pp. 27–40.

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farmers, traders and professionals.[39] Thus, when J. M. Kariuki shouted 'we do not want a Kenya with 10 millionaires and 10 million beggars', the ruling class knew exactly where this message could strike the first responsive cord: in Central Province. And Kariuki was not to be allowed to disturb the hornet's nest for too long lest the hornets learn how to sting through political organization. He was assassinated on 2 March 1975, and a Parliamentary Committee set up to inquire into the death revealed the complicity of people very high up in government and quite close to the presidency. But the committee could only go so far: nobody dared bring the president or his men to book. If anything, presidential powers were used in an even more authoritarian manner to wash the committee's report and to detain some of its leading members.

Responses of the bourgeoisie

In a country like Tanzania where the bourgeoisie has developed a political organisation of its own, the ruling party, and has managed, through social engineering and political control, to bring the masses into politics through the medium of the party, the latter can be effectively utilized to overcome or deal with certain intra-bourgeois contradictions whenever necessary.[40] In Kenya, however, where, following the history already recounted, the bourgeoisie did not manage to organize a national political party in which it was effectively hegemonic, crises met the bourgeoisie with only one organized force in society that it could use: the state. And with most powers of the state progressively concentrated in the office of the president as years went by, struggle to control the presidency by determining who actually became the president became even more acute, leading indeed to some assassinations and some unexplained deaths of prominent politicians.

Attempts by the dominant faction of the bourgeoisie to regroup itself outside the state apparatus so as to control the political process occurred in two phases, both of them equally feeble and ineffective. The first one, in 1973, was the formation of the Gikuyu, Embu and Meru Association (GEMA) and the second was when forces behind GEMA tried to expand their constituency in 1976 by appealing for the revival of the old nationalist coalition going back to the KAU days. GEMA was the organization of the Kikuyu bourgeoisie. It brought together a number of individual Kikuyu capitalists who had an interest in common, that of influencing and controlling the political process through a conscious organization of their class outside the state apparatus. They also sought to control, through GEMA, the sucession to the presidency. GEMA expected to appeal to the people of Gikuyu, Meru and Embu for their 'natural' political support in any conflict

39. Kaplinsky, 'Repression and development'.
40. For an apt analysis of this phenomenon in Tanzania, see Issa Shivji, 'The re-organization of the state in Tanzania', in P. Anyang' Nyong'o (ed.), *Estado y Sociedad en Africa* (Mexico City: El Colegio de Mexico Press, 1988).

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in which this bourgeoisie was involved. But, in identifying their primary constituency so narrowly, they isolated themselves from the rest of the nation and could not expect much support from either the bourgeoisie as a whole or popular classes from other ethnic groups. Even as a political strategy within their so-called primary constituency, GEMA was undermined by the intense social stratification that had occurred in these areas and that did not easily lend the class of capital such ready-made support of other subordinate classes. Further, the competition between the capitalist class and other non-capitalist classes of property was more intense in Central Province where the closure of the property frontier, especially in land, heightened this contradiction. If any conflict dominated the latter years of the Kenyatta regime, it was between the indigenous class of capital (rooted in Central Province) and non-capitalist classes of property. The Kariuki crisis showed how tenuous was the political alliance between the indigenous bourgeoisie and non-capitalist classes.[41]

In 1976, the forces within GEMA went out of their way to revive the old nationalist alliance that linked KAU to KANU. A point of unity was again found over the succession issue. It was argued that, since the then Vice President, Daniel Arap Moi, was originally a KADU leader, KANU could not risk his taking the Presidency in the event of Kenyatta's death. Appeals were made to the original nationalist leaders within KANU to give their weight to this new move, and the campaign against Moi temporarily was baptised as 'the Change the Constitution Movement'. The Constitution was now to be changed making it impossible for the Vice President to succeed automatically to the presidency; the new proposals that this movement had were not, however, revealed in detail or publicly.

For the 'change the constitution' forces to succeed, they needed a majority in Parliament. But they apparently made their designs public without first of all ascertaining whether or not they could marshall the required parliamentary majority.[42] Meantime, there were forces within Parliament who did not owe their political rise to the old nationalist coalitions. These were men who had risen within the political process of elections under KANU tickets but who did not owe any allegiance to the party either in terms of party discipline or concrete party support. The hollowness of the party now came alive and clear to the 'change the constitution group' as it tried, almost helplessly, to find a method of gaining a parliamentary majority to accomplish its task. Lacking in organization and political loyalty, intimidation and bribery seemed the only option open to them in trying to recruit

41. Michael Cowen, 'The Agrarian Problem: notes on the Nairobi discussion', *Review of African Political Economy*, No. 20 (Jan-April, 1981), pp. 57–73.
42. P. Ochieng' and J. Karimi in *The Kenyatta Succession* gave some interesting account of this. But since most of the *dramatis personae* are still alive and in active politics, it is doubtful whether any Kenyan scholar can come out with a detailed and accurate account of what actually happened.

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support in Parliament. But, with regard to intimidation and bribery, their opponents, now grouped in yet another defensive alliance around the Vice President and Attorney General, had more than enough in supply. After all, in politics you either win support or you eliminate opposition. Those who had skeletons in their cupboards feared to tread on the toes of the Attorney General who then had effective power to bring them to book. Those in Parliament who could do with a few coins in their pockets or some largesse extended to them were not averse to supporting any side that was ready to oblige their appetites. On both sides of the divide, this game was played; it so happened that, at the time, the Vice President's defensive alliance marshalled the majority, no doubt also playing on the ethnic sentiments of Members of Parliament. And that is how Moi finally succeeded Kenyatta: no Constitution was changed. But why should the feuding bourgeoisie have stuck so faithfully to legal procedure?

Constitutionalism and presidential authoritarianism

A phenomenon that needs explanation is why there has been so much concern for the law in post-colonial Kenya. Even when it is obvious that the faction of the bourgeoisie which dominates the political process simply wants to get things done in its own interest, it must somehow reduce it to law, or act arbitrarily and then retroactively legalize such action. Why is this?

Part of the explanation is to be found in the colonial inheritance that dominates state action and processes of state legitimation. Things have been done legally from colonial times and they are only accepted or tolerated as legitimate if they pass through legal channels. It is also a way by which bourgeois interests are hidden behind the 'neutrality' of the law so that the bourgeoisie is not held responsible for making the state pursue its class interests but the state itself, as if it were neutral, is held responsible. Further, the process of law-making is believed to be carried out by the elected representatives of the people. Once certain interests pass through parliamentary validation as legitimate laws, they are expected to acquire a universal appeal and legitimacy beyond the particularistic social forces behind them. In this way, even when the interests of the bourgeoisie were being pursued much more directly through executive action, the need to stick to the law for purposes of legitimation was always there.

At the particular time when Kenyatta died, law, and not force, prevailed in the process of succession for both conjunctural and historical reasons. The historical reasons are the ones referred to above. The conjunctural reasons are those to do with the paralysis among the various contending factions which had resulted in the Constitution not being changed while some Members of Parliament also remained quite autonomous of the contending factions. It was quite possible that, given another round and a new possibility for the various factions to seek ways to exert their influence, the

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balance of forces could have changed quite considerably. There was also the fact the Kenyatta was expected to die but nobody knew just when and where. The week that he died, there were no obvious signs that he would. Those who were around him simply seem to have made the kinds of decisions that favoured a smooth constitutional succession. Moreoever, there were no immediate social tensions in society which could have prompted some dissatisfied elements in the armed forces to intervene. The country had just come out of the coffee boom during which many people came across 'quick money' by smuggling coffee from Uganda. Business had been great for both the petty trader and the coffee exporters; the middle class had also reveled in the temporary opening of the property frontier as the coffee money was used to finance houses in the urban areas which were then sold to members of this class on reasonably easy mortgage terms. While real per capita incomes had been more or less stagnant since 1971, between 1976 and 1978 while the boom lasted, real per capita incomes went up by almost 10 per cent.[43] It was, in general, a brief period of recovery and prosperity. There was little sign of a *constituency of discontent*[44] that an army colonel or captain could appeal to for support in undertaking a coup in opposition to the smooth succession.

Conclusion

A rigid presidential authoritarian system does not allow for much political discourse even for the bourgeoisie; if anything, it tends to narrow the avenues of political participation and encourage intrigues and plots within the ruling class. Intra-bourgeois conflicts may be violently settled as competition for the presidency stiffens, further alienating the political base of the regime. That the regime may weather such storms is quite often a function of favourable economic conditions, effective repression or the successful manipulation of the political process by the authoritarian president. But since all these largely depend on conjunctural circumstances, they are no guarantee to assuring stable bourgeois rule. Such a rule can only be accomplished if the bourgeoisie can effectively organize its political control of society outside the state apparatus. In the case of Kenya, attempts by the bourgeoisie to do this systematically failed, first because of the internal fractionalization of the bourgeoisie itself, and, second, because, when it tried it, society had already changed so much that the nationalist alliance of the old days no longer had a corresponding social basis. Thus, in order to guarantee its political dominance of society, the bourgeoisie was once again compelled to prostrate itself before the executive branch of government, the authoritarian president.

43. Kaplinsky, 'Repression and development'.
44. For an elaboration of this concept, see Anyang' Nyong'o, 'Military intervention in African Politics,' in *Third World Affairs, 1986* (London: Third World Foundation, 1986), pp. 171–9.

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